



DEPARTMENT OF THE NAVY
NAVAL AIR WARFARE CENTER AIRCRAFT DIVISION LAKEHURST
ROUTE 547
JOINT BASE MDL NEW JERSEY 08733

IN REPLY REFER TO:
J&A #25-0348

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity

Naval Air Warfare Center Aircraft Division (NAWCAD) Lakehurst, NJ.

2. Description of the Action Being Approved

This Justification and Approval authorizes and approves on a sole source basis a contract to Tel-Instrument Electronics Corp. (Tel Instruments), CAGE Code 92606, for the procurement of a Communication/Navigation Test Set, Part Number (PN) 90000215, NSN 4920-01-709-0335. This effort is in support of the H-60 Aircraft Foreign Military Sales (FMS) programs for the Greece Hellenic Navy, the Norwegian Defence Materiel Agency (NDMA), and the Spanish Armada under Cases GR-P-SCK, SP-P-SDE, and NO-P-SAR, respectively.

3. Description of Supplies/Services

This action is for the procurement of eight (8) Communication/Navigation Test Set, PN 90000215. The item is required in support of the H-60 helicopter and is a multi-purpose portable battery-powered device that tests many avionic system functions on the aircraft.

Estimated Dollar Value

	FY25 Total
Foreign Military Sales	\$ [REDACTED]
Total	\$ [REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority

This Communication/Navigation Test Set is the only United States Navy approved equipment to support the H-60 aircraft platform. It is used to test many avionic functions to include Mode 5 IFF, TACA, TCAS, Mode S, EHS, Link4A, Sonobuoy, and navigation functions. Tel Instruments is the only source capable of manufacturing this item who possesses the data rights and technical data package for this effort and is not willing to sell this data to the Government. The Government contacted Tel Instruments via email on [REDACTED] and confirmed that the technical data is proprietary and owned by Tel Instruments and will not be provided or sold for manufacture by another party. In addition, Tel Instruments does not have authorized distributors and is only available from Tel Instruments. The required item is only available from Tel Instruments and award to any other source would require the need to reverse engineer the item. Based on historical data associated with this item, the reverse engineering effort would result in

an estimated twenty (20) month delay as follows: non-recurring engineering fourteen (14) months; development of a technical drawing package six (6) months. This additional time would present an unacceptable delay in fulfilling FMS fleet requirements for delivery schedule that is not expected to be recovered through competition and would result in issues with organizational level of maintenance and the inability of the FMS Partners to support their H-60 aircraft in the same manner as the United States Navy.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

In accordance with Federal Acquisition Regulation (FAR) Part 10, market research was conducted by the requirements office to determine the most suitable approach for this acquisition. Market research included internet searches conducted by the NAWCAD H-60 Engineering team to determine whether any other vendor could satisfy the H-60 FMS requirements. The NAVAIR OSBP Website, Dynamic Small Business Search, and Google internet search engines were queried for potential sources. No additional sources other than Tel Instruments were identified, confirming that they are the only source capable of meeting the requirement.

In accordance with Department of Defense FAR Supplement (DFARS) PGI 206.302-1, and in an effort to identify possible sources for this requirement, NAWCAD posted a Sources Sought notice/Request for Information on the SAM.gov website on 22 July 2025 through 27 July 2025 and no responses were received.

As required by FAR 5.203, the proposed contract was synopsisized on the SAM.gov website from 06 August 2026 through 21 August 2025. One response was received from Tel Instruments confirming that they plan to submit a proposal in response to the anticipated solicitation. Any additional responses received prior to contract award will be evaluated by the Contracting Officer.

7. Determination of Fair and Reasonable Cost

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in paragraph 5, NAWCAD has no plans at this time to compete future efforts for the items covered by this J&A. If another potential source emerges, NAWCAD will assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

H-60 PSE Electrical Engineer

Date

Requirements Cognizance:

H-60 Acquisition Lead

Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Counsel
NAWCAD Lakehurst Office of General Counsel

Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

Procurement Contracting Officer
NAWCAD Lakehurst Procurement Department

Date